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THE LAST FRON-TIER

KEEPING THE PRESSES HOT IN SOUTHEAST ALASKA

BY **KEENAN MILLER**

IN THE WORLD of Southeast Alaskan journalism, all roads seem to lead to Larry Persily, whose story starts — serendipitously enough — with a classified ad.

"In 1976, my wife and I were both working for newspapers in Chicago, and in a trade journal, saw a classified ad, back when they used to have classified ads, that the weekly newspaper in Wrangell [AK] was for sale," Persily said. "And we sort of looked at it and thought, 'wonder what it's like,' so we called, and figured out we could actually afford it, and it sounded like kind of an adventure."

Five weeks later, Persily and his wife had uprooted their lives in Chicago and taken ownership of the *Wrangell Sentinel* in Alaska. Since then, Persily has sold and repurchased the *Wrangell Sentinel* twice, rescuing the paper once from bankruptcy, and once from a creeping deterioration in both quality and profitability.

There's a reason Persily has been called the "fairy godfather of local journalism"; aside from his habitual ownership of the *Wrangell Sentinel,* he has worked for the *Juneau Empire,* financed *The Skagway News*, and filled in as the editor for the *Chilkat Valley News* and *Petersburg Pilot*. He's also on the board of an organization that provides grants to Alaskan newspapers.

"I don't like seeing small town newspapers die. I can't save every little newspaper in the state or in America, but if I can save a few in Southeast Alaska, that seems like a good purpose in life," Persily said.

The world of Alaskan journalism is a small one. Only 28 newspapers are registered with the Alaska Press Club, compared to the 116 newspapers that are currently published in Washington state, Alaska's closest neighbor. Though independent papers exist as far north as Fairbanks and Nome and as far west as Kodiak, Alaskan journalism tends to cluster in two locations. Most newspapers operate in and around Anchorage, the state's largest city. Seven dot Southeast Alaska, where the capital city, Juneau, and a series of small, remote communities are connected by the Alaska Marine Highway System, a well-developed flight network, and a troop of Alaskan journalists devoted to maintaining the strength of Alaskan journalism.

THE NATIONAL NEWS industry's decline is well-documented. As the landscape of information

"NEWSPAPERS OUR SIZE, AND PROBABLY EVERY NEWSPAPER IN ALASKA," HE SAID, "HAVE THE HUGE ADVANTAGE OF HAVING READERSHIP, ADVERTISER, AND COMMUNITY LOYALTY. THAT IS WHAT'S GONNA KEEP US MOVING FORWARD."

consumption and advertising has changed, data compiled by the Pew Research Center in 2020 tells us that everything from the number of daily papers circulated and revenue to newsroom employment is diminishing for papers across America.

Though the Biden administration has made the climate for journalists friendlier than it was under the Trump administration, the United States ranks only 44th of 180 countries in the 2021 World Press Freedom Index. Well-established newspapers are increasingly being bought by hedge funds and large newspaper chains. For outside owners, maintaining their bottom lines often takes precedence over delivering quality news to subscribers, and newsrooms find themselves gutted as a result.

Alaska occupies a strange position within the larger national story of the newspaper industry's decline. "In Sitka, we're going through the same crisis that virtually every newspaper in the country has gone through or is going through," said Thad Poulson, who, alongside his wife Sandy Poulson, has operated the *Sitka Sentinel* since 1969 and owned it since 1974. "It is existential, suffice it to say." According to Poulson, competition posed by other news sources, the online revolution, and declines in advertising have destabilized the Sitka Sentinel and other Alaskan newspapers.

Poulson said he was fortunate that he and his wife have no long-term debt and have put away savings both for the *Sitka Sentinel* and themselves. Because they aren't financially dependent on the operation of the newspaper, the Poulsons operate it primarily as a community service.

"But there is no doubt about it that it is not a financially sustainable operation," Poulson said. Though he and his wife have had the paper listed with a national newspaper broker for two years, the offers they've received for the paper have been either from companies that have a reputation of running papers into the ground or people who have unreasonable expectations of financial success. Because they haven't found a satisfactory buyer, they're considering transitioning the paper to a community-based nonprofit, so they can afford to keep a daily newspaper in the town.

Though Poulson is confident that Sitka could, in theory, maintain a for-profit, weekly newspaper, he fears that the loss of an in-town daily would turn Sitka into a "news desert" because of shipping logistics. This would leave those who live in Sitka without effective ways to publish, among other things, obituaries and news about the activities of local government —

the sorts of things larger papers might not necessarily pick up.

RON AND ANNE LOESCH, the publishers of the *Petersburg Pilot,* have owned their newspaper since 1976. During their tenure, Loesch has noticed a "continuous growth" in the paper until about five or six years ago, something he attributes to an aging consumer base and competition from the internet. Expanding and updating the *Pilot's* digital offerings, such as their website and Facebook page, have been a key part of the paper's adaptation to an increasingly digital landscape. Younger people skilled in navigating digital processes have been vital for this transition, but attracting talent is becoming increasingly difficult.

"We're experiencing the same problems as other newspapers when it comes to attracting talent. Back in the '80's and '90's, when we advertised for a new reporter, we would have fifty or sixty job applications for a single opening," Loesch said. But the last time they posted a job opening, they only got three applications.

Increasing pay is one way to make newspaper jobs attract more applicants, but increasing reporter salaries only exacerbates financial strain for small papers.

Still, Loesch seemed confident in the *Petersburg Pilot's* path forward.

"Newspapers our size, and probably every newspaper in Alaska," he said, "have the huge advantage of having readership, advertiser, and community loyalty. That is what's gonna keep us moving forward."

Kyle Clayton took ownership of the *Chilkat Valley News*, which operates in Haines, Alaska, after time spent working in Bethel, Petersburg, and Anchorage. Like Loesch, Clayton has noticed fairly stable community and advertiser support for his paper, in part because there's no real competition for local news.

"There's no option but the public radio station and the newspaper," he said. "Remoteness protects us from a lot of the trends that are happening down south [in the lower 48 states]."

MELINDA MUNSON AND GRETCHEN WEHMHOFF, the owners of *The Skagway News*, took ownership of the newspaper from Persily in March 2020, at the start of the COVID-19 pandemic. They call themselves a two-woman show; Melinda writes, and Gretchen is primarily in charge of business affairs and paper layout.

The pandemic has defined their tenure at *The Skagway News*. Their newspaper is printed in Whitehorse, Canada, and when borders between nations were closed, they were unable to negotiate transport or shipping of print newspapers to the town. Their attempts to distribute the paper online were stymied by a simple lack of information; they had community members' physical addresses, but not their emails.

Even when the newspaper is operating normally, distribution is at the mercy of weather. The Klondike highway, which connects *The Skagway News* to their printer in Whitehorse, is "closed more often than it's open" due to icy roads, avalanches, and other weather phenomena.

And, without a typical cruise ship season in the region, they lost their primary source of income. Traditionally, *The Skagway News* earned four-fifths of their revenue from a visitor's guide. This is printed annually, and distributed on the docks to tourists. But the pandemic completely decimated the 2020 tourist season, and the 2021 tourist season was still limited. Even when Munson and Wehmhoff were able to distribute the visitor's guide in 2021, they distributed only one-tenth of their pre-pandemic numbers, even after slashing the price by 75%.

Municipal grants, stories provided by Persily and shared by newspapers in the region, and a town full of talented artists and photographers willing to share with the paper has helped them weather the pandemic.

All of the newspaper owners *The Politic* interviewed emphasized the irreplaceability of community papers.

"Nobody's paying attention except for

"WE CANNOT FAIL. AND I DON'T MEAN THAT WE'RE NOT CAPABLE OF FAILING, BUT WE CANNOT FAIL."

us," Munson said. Aside from the occasional chain story (usually focusing on Skagway tourism) and brief public radio stories, *The Skagway News* is the only entity writing regularly about local politics, people, and events. This is also true in Haines, Petersburg, Sitka, and Wrangell; Juneau, as Alaska's capital city, will have state and national event coverage as long as it remains Alaska's political center.

"Small-town papers are probably covering more local news than even the largest paper in the state [*the Anchorage Daily News*] can now," Wehmhoff said.

This means that Southeast Alaska's independent papers have primary responsibility for keeping communities connected, through simple services like event round-ups and obituaries. Beyond providing critical services, newspapers take on a symbolic weight as well.

"We cannot fail. And I don't mean that we're not capable of failing, but we cannot fail," Munson said, "Because if a newspaper goes down in a small town, it says something about the whole town. Like, 'one more thing is gone, what's happening to our town?'"

BEN HOHENSTATT has been with the *Juneau Empire* for about four and a half years, and currently serves as the newspaper's editor. When he arrived in Juneau, the paper had recently been purchased by Sound Publishing Inc., a subsidiary of Black Press, after a flurry of changes in ownership.

During his tenure with the *Juneau Empire,* a combination of layoffs and attrition has shrunk the newspaper dramatically. The publication used to have eight full-time reporters in the newsroom, and now only has four — one of whom works only part-time.

This means making tough choices about what to report on in the Juneau community.

"I would say as far as 'needs,' I think we have those addressed," Hohenstatt said. Yet "the line between need and something you want very badly as a news room can get pretty fuzzy. We can definitely cover the important taxing bodies, we can definitely figure out how to cover breaking things and crime, but how often do we get to make it out to a local sports game?"

Despite the limits imposed by staffing realities, the *Juneau Empire* benefits from a deep sense of community ownership, something Hohenstatt said comes from Juneau's status as a "bottle community," or a "de-facto island." The city is accessible only by boat or plane.

"Everyone says they don't read it, but everyone can discuss every article," Hohenstatt joked. "Everyone can call it a fish wrap, but they also remember the police blotter from three weeks ago."

Hohenstatt hasn't faced the same recruitment challenges editors and owners of other papers have faced, noting that there was "no shortage of applications" when they recruited to fill a full-time reporter position, and that the paper consistently receives emails from people asking about job opportunities even when they aren't actively hiring.

As the only Southeast Alaskan newspaper owned by an outside publishing company, the *Juneau Empire* is inherently affected by the health of its sister publications, which are primarily located in Washington state. Though the COVID-19 pandemic presented reporting challenges for the Juneau Empire, Hohenstatt felt that the Empire rode the shock of economic contraction better than some other papers owned by Sound Publishing Inc., likely due to extraordinary community investment in the paper.

Hohenstatt finds the corporation unobtrusive, and pointed to the opportunities provided by interconnectedness. These include access to articles written by other papers and staff devoted to design, website maintenance, and data visualization.

Hohenstatt also looks forward to the return of Southeast Alaska's tourism industry, a major economic driver in the region.

The same forces fraying the national news industry are clearly wearing away at the ropes of Southeast Alaskan journalism. But the strands that make up the rope in Alaska, it seems, may just be thicker or better suited to the elements.

Highly dedicated owner-operators, like those found in Southeast Alaska, are one strand. When speaking to newspaper owners, the depth of their investment becomes clear. Producing good work and serving their respective communities is a large part of what has kept long-time paper owners in the journalism game for so long, and what makes newer owners determined to succeed. Persily, who has made the resuscitation of Southeast Alaskan papers almost routine, exemplifies the devotion that is quietly present across the region.

Community support is another. For all the disadvantages of producing news in small, remote communities, Southeast Alaskan papers benefit from unusually tenacious subscribers and loyal communities. Assertions of community independence have become a Southeast Alaskan cliché almost out of necessity, because outsourcing anything is such a hassle. Journalism is no different, and the service hometown papers provide would be nearly

"THE LINE BETWEEN NEED AND SOMETHING YOU WANT VERY BADLY AS A NEWS ROOM CAN GET PRETTY FUZZY."

THE SAME FORCES FRAYING THE NATIONAL NEWS INDUSTRY ARE CLEARLY WEARING AWAY AT THE ROPES OF SOUTHEAST ALASKAN JOURNALISM. BUT THE STRANDS THAT MAKE UP THE ROPE IN ALASKA, IT SEEMS, MAY JUST BE THICKER OR BETTER SUITED TO THE ELEMENTS.

impossible for outside newspapers to absorb. As my grandfather would say, the *Juneau Empire* makes for a good fire starter, if nothing else.

Revenue difficulties are troubling, even for optimistic owners with relatively stable bank accounts. Advertiser withdrawal, which has happened in response to changes in the advertising landscape and the pandemic, is only likely to accelerate. Digital journalism is less profitable than print journalism. Journalists are expecting larger salaries for the work they do. As balancing checkbooks becomes more difficult, Southeast Alaska newspapers benefit from a relatively slow rate of change that allows them to adapt — whether that means transitioning to a non-profit model, seeking funding from outside grants and creative partnerships, selling to large conglomerate publishers, or overhauling the way they approach journalism.

The elements will continue to wear away at Southeast Alaskan journalism, but the rope is strong. And as long as it remains intact, it is a sign that independent, local journalism can endure.



Courtesy of Keenan Miller

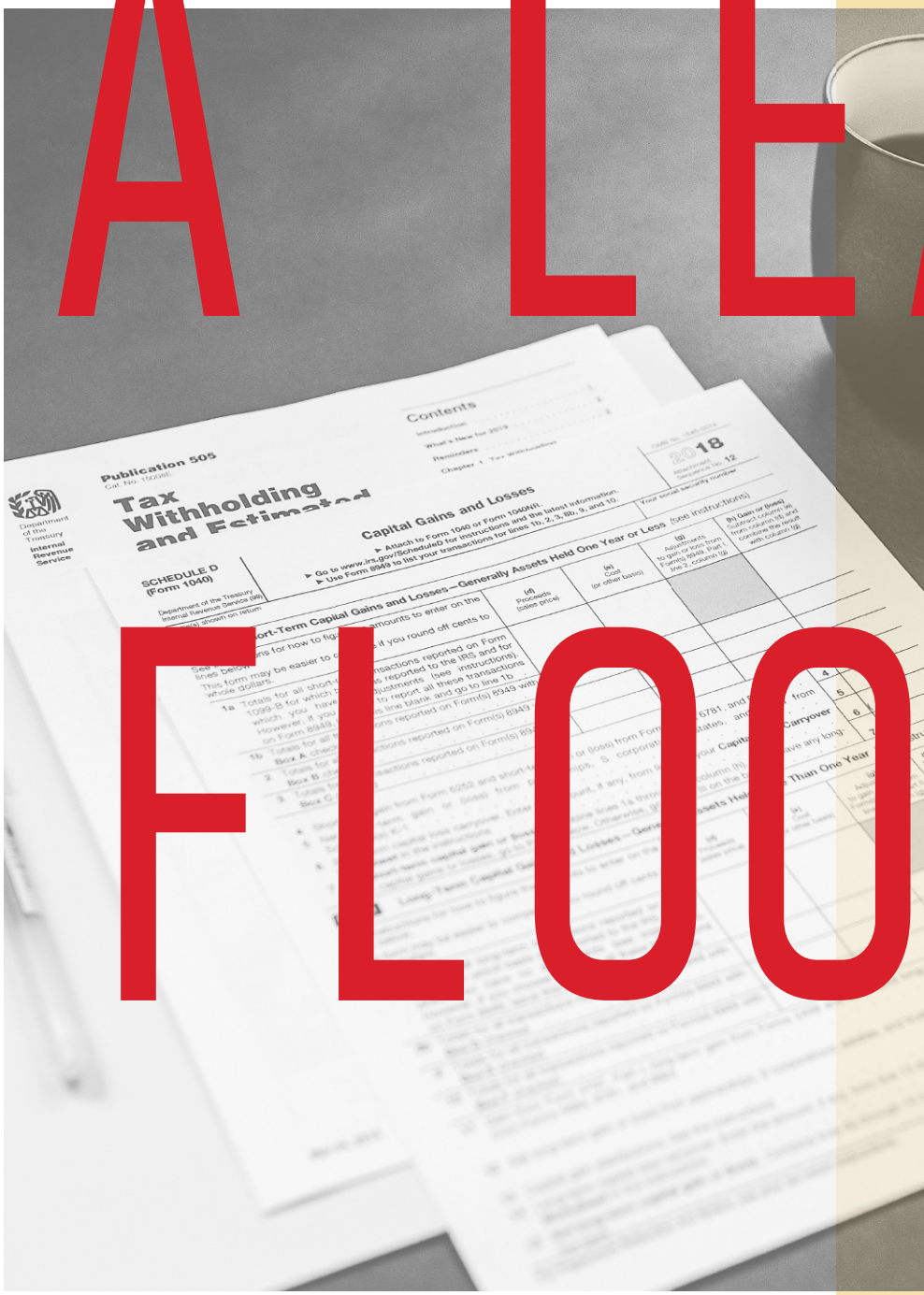
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Pandora Papers Raise the Alarm on the Elite's Financial Secrets

BY **AXEL DE VERNOU**



Kelly Sikkema for Unsplash

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An ancient Greek myth tells the story of Pandora, the first human woman. After curiously lifting the lid of a container owned by her husband, she released the curses that would forever plague humankind out into the world.

Like the myth, a massive data leak in October 2021 has resulted in a monumental revelation of a concealed system, spurring a conversation about international accountability and legality. The Pandora Papers — totaling 11.9 million files — were compiled when 14 offshore service providers shared confidential images, emails, and documents with the International Consortium of Investigative Journalists (ICIJ) detailing the new methods that global politicians and officials have taken to evade their taxes.

These 14 agencies assisted individuals with establishing holdings or companies in areas with low tax rates, and thus held priceless information about the world leaders who were regularly using their services.

The ICIJ, a global nonprofit network of journalists, had exposed similar findings in the Panama Papers in 2016 and the Paradise Papers in 2017, but both leaks contain data obtained from a single source. The Pandora Papers, on the other hand, have shed light on the offshore tax havens of 35 world leaders, highlighting the corrupt actions that executives, entertainers, and politicians take to shelter their wealth.

THE GLOBAL COVERAGE of the Pandora Papers has encouraged this type of societal pressure worldwide. Citizens, independent organizations, and media outlets are teaming up to share their voices and change a fundamentally flawed system. At the same time, in the United States, Joe Biden's Build Back Better plan introduces a tax surcharge on Americans who earn more than $10 million while strengthening the IRS's enforcement of the payment. The ICIJ's investigation comes amidst a years-long reckoning that the ultra-wealthy are shielding their money from tax payments, reinforcing disparities between the rich and the poor.

"There are times [when] public anger and discontent are hard to contain so the system is pushed to a corner and that's when change is more likely," said Elinda Labropoulou, a Greek journalist who has written for CNN and the *Washington Post*. Recalling her work on refugee migrations and the rise of far-right parties in Greece, Labropoulou explained that while it may initially be difficult to keep audiences interested in groundbreaking work, pursuing a story will eventually "empower pressure groups" to "keep the story in the public eye."

Despite the serious ethical transgressions uncovered by the Paradise and Panama Papers, Americans may be hearing about these leaks for the first time. Rather than uncover deeply embedded tax havens in certain U.S. states, the previous leaks focused on specific, lesser-known individuals, which made the issue seem less widespread and newsworthy. But in the Pandora Papers, American companies and imbalanced state systems are frequently implicated in the documents. Elite multinational banks and law firms headquartered in the United States and Europe — such as Morgan Stanley and Baker McKenzie — have been cited for cooperating with companies from countries with lower tax rates to set up accounts for wealthy individuals who want to store their money in unassailable havens (both have denied any involvement in illegal procedures).

The U.S. has suffered a "terrible black eye from these revelations," said Will Fitzgibbon, an ICIJ senior reporter. The state of South Dakota, for example, which has generous regulations for trusts that are owned by dynasties, has acted as a tax haven for the rich worldwide, including Ecuadorian bankers William and Roberto Isaias. The siblings, who had embezzled government bailout money, allegedly stored their money in three trusts in South Dakota since the state's

flexible laws allow the ownership of money to become ambiguous, and thus difficult to tax. Previously, the U.S. was a "nonresponsive, surly, silent global player," Fitzgibbon added. This time around, Fitzgibbon says that American lawmakers, advocacy groups, and media publications have been "the most vocal in many ways" as journalists partnered with the ICIJ to report on the documents' alarming contents.

The ICIJ is a prime example of how collaborative journalism can inspire citizens to act and push for ambitious reform. Investigative journalism aims to discover information of public interest that someone is trying to hide, Labropolou said. "Based on facts, [it] is meant to serve as an enabler for democracy and a checks-and-balances mechanism of the political system," she continued. With the help of small, local teams, citizens can observe the direct impact of ICIJ's findings in their home countries.

Unfortunately, many countries curtail press freedom, so such critical reporting on individuals in power often cannot happen. The U.S.'s strong judiciary and vibrant civil society have largely held leaders, companies, and entertainers accountable for their actions, which cannot be said of every affected region in the Pandora Papers. "Every country and every continent has different dynamics in terms of how these stories can be told and how these stories are received," said Fitzgibbon. "Journalists in other continents could not participate in the project because they knew that if they [did], they or their families would face punishment," Fitzgibbon said.

Nonetheless, Fitzgibbon still hopes that the revelations will yield significant reform in these countries. "I am very much a believer in the cumulative effect of the power of these projects," he said. "The fact that a term like 'tax haven' or 'offshore' or something more specific like the BVI [British Virgin Islands] are common currency not only in journalism but the language of the streets... is a sign of the recognition of the importance of this issue in society," said Fitzgibbon.

THE REVELATIONS have shaken the foundations of civil society and governance across the world, often in different ways depending on the country. While Russian spokespeople have been quick to dismiss the ICIJ's investigation as unsubstantiated and inconclusive, for example, Latin American countries like Mexico are in the midst of institutional reform.

The papers reveal that in Mexico, over 3,000 businesses and 80 politicians worked with private banks and firms to abuse tax privileges in other countries. Mexico's president Andrés Manuel López Obrador decisively neglected the severity of the allegations. Instead of using the papers to call for reform, he questioned the significance and accuracy of the financial data detailing the involvement of Mexican nationals. "He has minimized the investigation's findings as he usually does regarding corruption scandals involving his government. He says that corruption was worse in the past than it is today. Nevertheless, his government has failed to sanction some of the most recent crimes committed by public officials," Andrea Cárdenas, a journalist for Quinto Elemento Lab, told *The Politic*. Quinto Elemento Lab, an independent nonprofit organization with a mission to empower citizens, has partnered with the ICIJ to investigate and disseminate the information in the Pandora Papers to Mexican readers.

Mexico's Senate has pushed back on López Obrador's skepticism by beginning to discuss legislative reforms which will s
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six journalists also created a database where one can easily search the names and activities of the Mexican individuals included in the papers.

"For months, one of our main duties was transferring all that is included in the Pandora Papers in our own database," said Cárdenas. "So we note their name in a column, the date when the company was created, the type of company — trust, business, or foundation — the tax haven in which it was registered, the office or agent who registered the company, and other observations or notes of interest."

Cárdenas has spoken with Mexican senators across the political spectrum and, despite the slow pace that reform has taken since last October, she explained that regulatory laws have a significant chance of being implemented in 2022. Mexico's Economic Proposal for 2022, which took effect in January, will aim to eliminate loopholes in legislation that enable taxpayers to obfuscate their earnings. The proposal requires public servants to be transparent about their holdings and for companies to pay their fair share to the appropriate revenue service.

With senators, citizens, and agencies collectively putting pressure on the Mexican government, the Pandora Papers have greatly exceeded past initiatives. Calls for accountability and transparency that would previously fade away due to executives' quick dismissal are now being taken seriously, especially as journalists uncover specific details that highlight the need for reform.

WHAT IS ESPECIALLY striking and complicated about this trove of documents is that the majority of the activities enclosed in the files are technically legal. Because its jurisdiction ends at its borders, a national government cannot make tax havens illegal. Individuals have the freedom to choose to correspond with a foreign bank if they favor the banking rules of another country. When the rich abuse this trust by participating in a morally unethical process that remains within the constraints of the law, there is little that governments can do to step in.

Certain named individuals were unaware of their involvement in such a widespread operation, according to Daphne Reuter, ICIJ's data journalist and researcher. Some politicians may have been assisting an acquaintance or a colleague with setting up a bank or a trust without realizing that they were perpetuating the problematic offshore economy, said Reuter. The system is omnipresent to the point that it can be difficult to avoid when establishing a trust in a foreign country.

Britain's former Prime Minister Tony Blair and his wife have been criticized for dodging £312,000 of mandatory stamp duty by buying a London townhouse, but they explained that they only submitted their joint income and capital to the seller without realizing that they had become implicated in a shady global network.

"I think [politicians] are going to be more cautious now," said Reuter, adding that the frequency and specificity of offshore leaks has made it nearly impossible for perpetrators to go unnoticed. Many politicians forgot to exercise caution because, oftentimes, "the end client is not in touch with the offshore service provider, the bank is," Reuter explained. To solve this issue, it is "a matter of asking the right questions — going to the bank and asking: How does this system work? What is behind the bank account? What is behind the real estate?"

Indeed, the wealthy will need to exercise caution when opening up foreign bank accounts or trusts because, if they are found to be participating in the offshore system, they have very little recourse or way of spinning their involvement in a positive light. The ICIJ cannot be condemned for sharing specific individuals' activities because American legal precedent protects it. "In a 2001 case (*Bartnicki v. Vopper*), the Supreme Court held that the First Amendment protects the disclosure of illegally intercepted communication. For the Pandora Papers, this means that reporting on unlawfully leaked information can receive First Amendment protection," said Amanda

PAPERS

The system is omnipresent to the point that it can be difficult to avoid when establishing a trust in a foreign country.

Reid, faculty co-director of UNC's Center for Media Law and Policy. Consequently, the ICIJ is fully protected even if the accused try to argue that the data was illegally acquired by the offshore service providers.

This protection extends to another general First Amendment right which states that truthful information regarding matters of public concern can be disseminated "as long as the publisher played no role in illegally acquiring it," Dr. Jonathan Peters, the press freedom correspondent for the *Columbia Journalism Review*, told *The Politic*. Since the ICIJ did not violate any laws by obtaining information from the offshore service providers, the people mentioned in the documents cannot retaliate by resorting to legal claims. Instead, they will simply have to be wary about which assets they buy and to whom they are transferring their money to avoid having their reputations tarnished.

Are these leaks enough to curb the unethical activities that the Pandora Papers describe? After all, the data is so comprehensive that even the most surreptitious transaction is identifiable. Marwan Kheireddine, Lebanon's former minister of state, condemned his colleagues in 2019 for continuing to participate in tax evasion despite the stark poverty that many citizens are facing there. However, the Pandora Papers reveal that Kheireddine "signed documents as owner of a BVI company that owns a $2 million yacht," according to the ICIJ. The piercing investigations easily take down empty public statements, and hypocrisy arguably attracts even more admonition.

Fitzgibbon worries that the Pandora Papers will not prevent leaders from hoarding their money unethically but rather encourage them to adopt cleverer mechanisms to avoid being caught, a process that is already somewhat visible. Russian president Vladimir Putin, for instance, has used clever pseudonyms that range from a girlfriend, a driver, or a hairdresser to buy lavish properties, according to Fitzgibbon. "My fear of course is that politicians are becoming smarter," Fitzgibbon added, citing the use of a strawman as a common tactic to conceal purchases.

As proactive legislation forces the rich and famous to declare the destination of their assets, there is much less of a chance that they will unintentionally abuse a tax haven. However, as Fitzgibbon notes, the wealthy may always attempt to circumvent regulations and avoid paying their share of taxes.

THE PANDORA PAPERS are, by themselves, just a compilation of the offshore activities of various business executives, politicians, and celebrities. To ignite discourse about reform and hold these individuals accountable, journalists from across the world have also participated in an extraordinary initiative to succinctly summarize their findings and make the data accessible to more readers than ever before. With so many details available to an organization like the ICIJ, the well-off will be discouraged from engaging in the system and will exercise caution when dealing with their assets. "Results in such investigations take a long time to [emerge] but creating precedents and raising questions of legality are [the] first steps to bringing change," said Labropoulou.

Mexico's case demonstrates that reform is possible, even if it takes a significant amount of time. Other national governments, which may be hesitant to introduce radical anti-corruption measures, will be subject to growing demands from the public and the press for accountability and transparency about the offshore economy. While some leaders may attempt to devise clever pseudonyms or rely on middlemen to execute an operation, they ultimately will have to pay their fair share or face the consequences of global scrutiny.



Gen Z Politics and the Rise of Thrifting

BY **CALEB DUNSON**

The sign looked as though someone had taken the sides of several steel shipping containers, painted them with the brightest hue of red known to man, and hoisted them on the walls of an old factory building. "Village DISCOUNT OUTLET" was plastered in white across the building's steel paneling, each letter appearing as if it had been stolen from a different restaurant sign.

I stepped inside and was choked by the smell of stale clothing. Racks of old jeans, jackets, shirts, and sweaters lined the walls while other garments lay strewn haphazardly in white bins. Hipster teenagers were scattered across the warehouse-sized building. This was my first time shopping at a major thrift store, and I had no clue what I was doing. But I knew that all of the cool kids were doing it, and I knew that my friend, who had navigated us to her favorite thrifting spot, was eagerly awaiting the hunt for interesting clothing finds.

According to NPR, the thrifting industry, which is currently worth $28 billion, is projected to eclipse the so-called "fast fashion" market by 2029. The industry's precipitous rise has been largely driven by Generation Z. Refinery29 reports that "an estimated 46% of Gen Z shopped secondhand in 2019, according to Medium, compared to 37% of millennials and just 18% of Gen X." But what is the allure of shopping for used clothing? And why does it matter?

Clothes are integral to how we perform our identity. They are one of the primary tools we use to influence how people perceive our values and our social status. Think of how suits have been "historically associated with projecting elegance, authority, and mastery of a profession," or how people buy designer clothes to

showcase their wealth. Because clothing is a marker of identity and social standing, fashion is political. Consider how Representative Alexandria Ocasio-Cortez (D-NY) showed up at the Met Gala, a fashion-obsessed display of wealth and excess, wearing a white dress with the words "TAX THE RICH" scrawled in red. Moreover, our clothes reflect our consumption choices — and our values too. The saying "we vote with our dollars" is especially true of fashion. The clothes we purchase set cultural standards for appropriate attire and reinforce the trends from which multi-million dollar clothing stores profit. "These [sartorial] expressions are manifestations of deeper things we're trying to resolve, both individually and collectively," said NYU adjunct professor Dicky Yangzsom, who wrote her Yale doctoral dissertation on thrifting. "Thrifting has a great story... and we need stories," Yangzom said, "It's an interesting question, what do [these stories] really say about our values? What do they say about what we really believe in?"

My friend led me to the back stairwell of the store and up into the men's clothing section. I was not sure where to begin, or how, because the store was organized by a logic I couldn't understand. The underwear was next to the button-ups and jackets, the shoes were next to the t-shirts, and none of it made sense. My friend, seeing my confusion, demonstrated how to thrift "properly": starting at one overfilled rack and slowly, meticulously, inspecting each garment of interest. I made my way to the t-shirt rack, packed tightly with clothes grouped by color in the sequence of a rainbow, and began sifting through it.

When I finally landed on an article of clothing that spoke to me — a brown bomber jacket that was in relatively good shape and that did not smell terrible — it was as if I found my soulmate. The love I felt for that jacket was primal, indescribable, as if that piece of clothing was my firstborn and I was sworn to cherish and protect it. A white tee with "HUMANS AREN'T REAL" printed on it spoke to me in the same way, and then a beige cardigan, and then a knitted sweater. Of the clothes I wear now, these are the ones I love the most and the ones people compliment me on most often. A curious "Where'd you get it?!" usually follows those compliments, and I think that question gets at the core appeal of thrifting: its power as a tool of self-expression.

Individualism and the desire to be unique have always been strong forces in American society, and that is no less true today. Social media platforms, where people build online monuments to themselves, have also heightened the desire to stand out. But the top teen clothing brands of this era — Urban Outfitters, H&M, Forever 21, and the like — sell the same kinds of clothing: an overpriced, watered-down appropriation of streetwear. "When I go into regular stores, it feels very commodified and oversaturated because there are so many of the exact same, perfectly-curated item," Lewis-Hayre told *The Politic*. Thrift stores, on the other hand, represent a quirky hodgepodge of varying tastes, where you can find an outfit that represents your interests. Jessie Chung '24 echoed this sentiment. "I really like that there's an unknown story behind each piece," she said. "[It's] also cool to find unique pieces that are not necessarily 'in style.'"

At Village Discount, I found a faded brown shirt with a picture of Nintendo's Mario outfitted in a 1930s New York mafia gangster suit. The store had dozens of equally obscure and idiosyncratic pieces of clothing. To young people searching for their identity, thrifting is an opportunity to explore their interests and find clothes that represent who they are. Large fashion brands, constrained by the profit incentive to follow mass trends, simply cannot match thrifting's appeal. That is likely why online thrifting platforms like Depop and Etsy have seen massive booms in popularity and now compete with big brands for Gen Z customers.

After the high of buying new clothes, a bad case of buyer's remorse quickly follows. But as I left the thrift store with new old clothes in a garbage bag, my usual guilt was replaced by pride — and maybe moral superiority too. Not only had I saved a good amount of money, but I had also avoided contributing to the incredible waste and pollution generated by the fashion industry. I was an activist in my own little way. Many Gen Zers feel the same. Maya Lewis-Hayre '24 said she enjoys thrifting because "I can get good quality affordable clothing without worrying about my impact on the environment." According to a Depop customer survey, 75 percent of respondents said they bought from the second-hand clothing platform to reduce consumption. And according to a 2019 State of Fashion report conducted by McKinsey & Company, young consumers are increasingly making sustainability a priority in their shopping habits. Nita Qiu '24 said, "Thrifting makes me feel like I'm giving items a second life and using it to its full potential." Though it provides an activist aesthetic, thrifting has its fair share of problems.

In the early 20th century, thrift stores began cropping up as charitable efforts led by Christian organizations like Goodwill and the Salvation Army. These organizations



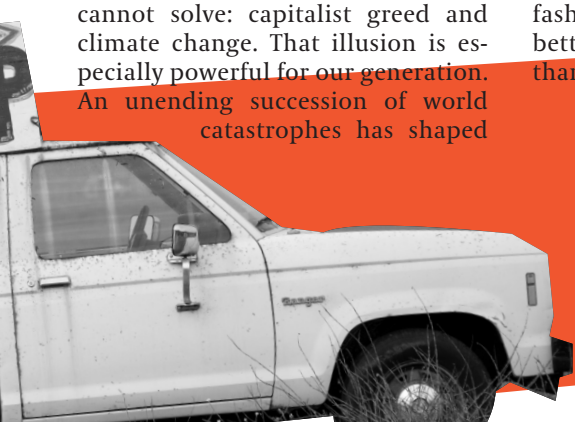
aimed to give poor people access to newer, high-quality fashion. But, as UNC-Wilmington professor Jennifer Le Zotte notes, thrifting became a justification for increased consumption — and thus more waste and quicker fashion cycles — as middle- and upper-class consumers justify their excessive spending by donating old clothes to charity. As the popularity of thrift stores grew, they began to restructure their business model and store layout to be more similar to retail stores. Organizations like Goodwill and Salvation Army started sending out delivery trucks to collect clothes by the thousands and charged more for higher-quality items. In that way, thrifting has always been intertwined with the profit incentive of capitalism, and the excesses that incentive creates. Today that manifests in retail arbitrage, where wealthy young people buy clothes from thrift stores for cheap and sell them at outrageously marked-up prices on online stores. Those people use the cover of climate awareness to turn a profit, and in doing so undermine any social impact thrifting might have.

So is thrifting any better than fast fashion? Or is it more about virtue-signaling? Eighty to ninety percent of thrift store donations are sold to recyclers, and because textiles are notoriously difficult to recycle, those donations end up in landfills more often than not. Nevertheless, the benefits of thrifting represent some improvement over mindless overconsumption, even if not to the extent many hope.

At the same time, thrifting gives people the illusion of doing good and of being in control of problems that our everyday choices cannot solve: capitalist greed and climate change. That illusion is especially powerful for our generation. An unending succession of world catastrophes has shaped our lives, and technology has let us helplessly bear witness to every one of them. We grew up in the aftermath of 9/11 and the War on Drugs, lived through two devastating economic crashes, watched an anti-democratic demagogue ascend to the presidency, experienced a revival of the civil rights movement through Black Lives Matter, and entered adulthood amidst a near two-year pandemic, all while contending with the looming threat of climate change. We spent our childhoods watching our world descend into chaos, and now as we begin to recognize our political and economic power, we have an urge to make change, or at least to feel like we are. Like posting social justice infographics on Instagram or making modest donations to progressive organizations, thrifting allows us to sidestep collective action by satisfying that urge. “There is so much waste just in the average American household in clothing so I just want to do the little I can to reduce that,” Qiu said.

The recent rise of thrifting is probably best framed as a reflection of young Americans’ values. It displays the staying power of individualism in our country, as the desire to be unique passes from one generation to the next. It also reveals the collective political anxiety that animates our generation’s consciousness. It lays bare our generation’s desire for a society not beset by world-altering political crises, free from the threat of climate disaster and capitalist exploitation. In the coming decades, our generation will enter the corridors of power, and for better or worse, we will transform our nation’s social, political, and economic landscape. While thrifting allows us to fashion our identities, fashioning a better world will require far more than just buying used clothes.

WHILE THRIFTING ALLOWS US TO FASHION OUR IDENTITIES, FASHIONING A BETTER WORLD WILL REQUIRE FAR MORE THAN JUST BUYING USED CLOTHES.



THE SOLITARY THOUSANDS

LOCKED AWAY IN CONNECTICUT'S SOLITARY CONFINEMENT UNITS

BY **NOEL SIMS AND SHIRA MINSK**

"I always worried about taking care of my son. But what about all those other sons that are in there that nobody's even checking on? That's how this work became my life."

This article contains references to physical violence and suicide, which some readers may find triggering.

A NINETEEN-YEAR-OLD Michael Braham was dressed in only his boxers, a t-shirt, and socks when guards came to his cell after breakfast and took him to the solitary confinement unit of Corrigan Correctional Institution in Uncasville, CT.

"You get handcuffed, you get brought down to wherever the segregation unit is, and then you're taken to a strip search.... And then they tell you 'there's two squares on the floor, stand on those squares,' and they say 'bend at the waist and open your buttocks,' so they see inside," Braham said.

When the guards told Braham to take off his clothes, he resisted. "'Hell no, fuck you,' that's what I told them," he described. The guards did not back down, and neither did Braham. On the senior guard's orders, "They jumped on me and cut my clothes off," Braham said. Braham was left completely naked, hands cuffed behind his back with nothing in his cell but a dirty mattress. Aside from this instance, Braham was put into solitary confinement 15 times throughout his 25-year prison sentence. His longest stint lasted more than seven months.

BARBARA FAIR, who was born and raised in Connecticut, has advocated for prison reform across the U.S. since her brother was imprisoned when she was a teenager. But until her own son was sent to Northern Correctional Institution, Connecticut's supermax prison, she was unaware that the disturbing practice of long-term solitary confinement that she had witnessed elsewhere was occuring in her own state.

In 1997, Fair's sixteen-year-old son Shelton Tucker was being held in solitary confinement in Northern while awaiting trial — though he had not been convicted of any crimes yet. Prison guards can place inmates in solitary confinement for disciplinary infractions or because they are deemed too dangerous to reside in the general prison population — the definition of "dangerous" left largely to the discretion of each guard. Tucker's sole transgression was an altercation with a guard at the youth correctional facility where he was previously held.

Fair learned about her son's life in Northern from letters he sent her describing physical, physiological, and emotional abuse. She began to reach out to legislators, commissioners, and "just anybody who could please get [her] son out of there." After encountering countless dead ends, Fair realized that the only way to help Tucker was to advocate for systemic change.

According to the United Nations Standard Minimum Rules for the Treatment of Prisoners, which are known as the Nelson Mandela Rules, Tucker's six-month long stint in Northern was a human rights violation. The rules classify solitary confinement lasting longer than 15 consecutive days as torture. For pregnant inmates, minors, and inmates with preexisting mental illness or physical disabilities, the Mandela Rules prohibit the practice altogether. But across U.S. prisons, violations of the Mandela Rules are commonplace. On November 1, 2020, Northern Correctional Institution, where Tucker was kept in solitary confinement, held 50 inmates in administrative segregation, all of whom had been in solitary for more than the 15 day maximum. The longest stay approached four years.

Fair and her organization, Stop Solitary Connecticut, won the bipartisan passage of the PROTECT Act, 24 years after her son's release from Northern. The legislation would have prohibited isolated confinement, defined as sixteen or more hours locked in a cell, except in certain emergency response scenarios. After the bill passed through the Connecticut General Assembly in June 2021, Fair followed Governor Ned Lamont out to his car, where Lamont told her he intended to sign the bill. "We thought our work was done," Fair said. "I went on vacation."

But three weeks later, under pressure from the union representing correction officers, Lamont vetoed the bill. Like the union, Lamont cited concerns for the "safety of incarcerated persons and correction employees" as the motivation for his veto. In its place, he issued an executive order, which can easily be overturned at a later date, with weaker restrictions against the use of solitary confinement.

Lamont and other officials have celebrated the executive order, as well as the closure of Northern Correctional Institution in June 2021, as progressive steps toward a more humane criminal justice system, but Fair rejected these actions as any kind of victory. "They just shut down Northern and move the abuse to other prisons," she said. As for the executive order, Fair said, "It was a waste of

paper. It was useless."

"I always worried about taking care of my son," Fair added. "But what about all those other sons that are in there that nobody's even checking on? That's how this work became my life."

"THEY TAKE YOU as if you're being arrested inside the prison," Braham said. In many ways, entering solitary confinement is like entering a prison within a prison. Inmates are handcuffed when they are brought into the unit, and they undergo a trial to determine if they are guilty of the alleged infraction. Once in solitary confinement, inmates are hidden away in isolated corners of the prisons, which are often built intentionally out of the public eye.

"These places are sometimes underground, or behind five doors in the innermost part of the prison. So, they're literally not even visible to people working or living in the prison," explained Keramet Reiter, a professor of law at the University of California, Irvine. The consequences of this opacity are severe. "We have no idea what happens to people there."

Nationwide, the invisibility of solitary confinement is not just physical. Woefully inconsistent data collection also clouds our picture of life in solitary. Discrepancies in each state's classification of solitary confinement — referred to in different circumstances as restrictive housing units, security housing units, and even administrative segregation — make it difficult for researchers to observe nationwide trends. Working with irregular, often-incomplete data, researchers believe that the numbers they are working with grossly underestimate the actual inmate population in solitary confinement.

While solitary confinement remains largely invisible to researchers, citizens, and even those living and working within the prison system, the practice heightens many pressing social issues. "Lots of social problems that we have, like lack of health care, or lack of education, racism, or mental health care, are all magnified in our prisons," said Reiter, "and I think of solitary confinement as magnifying those problems even further."

Racism is one of the social issues most severely amplified by solitary confinement. Black men make up 5.95% of the general population in Connecticut, but 42.2% of the total male custodial population in the state. For many Americans, this statistic may be jarring but not surprising. Racial disparities in the criminal justice system have become a focal point of political discourse in the past decade, though the scholarship on this issue has existed since the turn of the 20th century. Reiter explained that racism is "just endemic to the prison system. Because of slavery, we have a particular kind of race relation that played out in our criminal justice system."

What remains obscure is the exaggeration of these disparities in the prison within the prison: solitary confinement. Black men make up 53.6% of the inmates in restrictive housing in Connecticut. A Yale Law School survey found that racial disparities among inmates in solitary confinement exist nationwide.

"When we look at the process by which people are assigned to solitary confinement, it's hard to identify the point at which there's racism. But when you just take snapshots, and you look at those in solitary confinement versus those in the general prison population, marginalized groups are grossly over-represented in solitary confinement," said Reiter. "The undertone of racism is there at every step, because a prison system is built on controlling groups of people who are seen as less human."

WHILE FAIR and her organization, Stop Solitary Confinement, were fighting to change Connecticut's system from the outside, Tracie Bernardi was locked in a restrictive housing unit inside Connecticut's York Correctional Institution, suffering the consequences of abusive and often arbitrary prison practices. The prison required that Bernardi serve two years in solitary confinement without receiving a disciplinary ticket for infractions in order to return to the general prison population. But each time she received a ticket while in solitary, her two-year clock restarted. These "infractions" did not have to be violent; they could be absolutely arbitrary. On one occasion, Bernardi was sentenced to two more years for giving another inmate a teabag — inmates were not supposed to share. She ultimately served seven consecutive years in solitary confinement.

When she first arrived in solitary, Bernardi and other inmates in her unit had to shower with their hands cuffed in front of them. Their shower had no door, and without the handcuffs, guards claimed they could not ensure that the inmates would not run away. Bernardi often had to finish washing up in the sink in her cell because she could not adequately clean her body with chained hands. A year into Bernardi's time in solitary, the prison finally installed a door for the shower so that the inmates could wash themselves with their hands free.

Like Bernardi, Braham was forced to shower with his hands cuffed and feet shackled during his first week of solitary confinement at age nineteen. Other inmates had to explain how he could remove his underwear through his shackles.

Bernardi and Braham faced many other dehumanizing practices while in solitary, such as staying in dirty cells in which previous inmates had sometimes smeared blood or feces, spending their daily hour of recreation time pacing back and forth in a cage ("like a dog," said Braham), using only a one-inch toothbrush, and eating poorly cooked meals often tampered with by guards. Both Bernardi and Braham said that if a guard with whom they had a recent conflict served their food, they would refuse

"THE UNDERTONE OF RACISM IS THERE AT EVERY STEP, BECAUSE A PRISON SYSTEM IS BUILT ON CONTROLLING GROUPS OF PEOPLE WHO ARE SEEN AS LESS HUMAN."

to eat it. "That's just not a chance you take," said Braham.

Though many of the abuses that Braham and Bernardi suffered resulted from concrete Connecticut Department of Correction (DOC) policy, much of their day-to-day treatment, like the food they were served, hinged on which guards they interacted with on a given day. Particular guards were known to be the cruelest, said Bernardi, but "other guards condone it by not doing anything."

IN THE 1980S, when solitary confinement was first developing into the widespread practice that it is in American prisons today, Department of Correction officials across the nation marketed it as something that would only be used for inmates that posed serious threats to prison security — "the worst of the worst," according to David Pyrooz, Associate Professor of Psychology at the University of Colorado Boulder and long-time researcher of solitary confinement. "A lot of people could at least get on board," said Pyrooz, "or at least understand that somebody could be placed in solitary confinement, if they're constantly spitting on officers, assaulting other prisoners, gassing other prisoners, throwing feces and urine on them."

But as time went on, the range of infractions that qualified an inmate as "the worst of the worst" became increasingly broad. Suddenly, guards were putting inmates in solitary confinement simply for being insubordinate. "It wasn't only violent people, but people who just didn't obey the rules," explained Pyrooz.

Robert Gillis, who now works with Fair at Stop Solitary Connecticut, noticed the overuse of solitary confinement in Connecticut prisons during his time as a warden with the Connecticut Department of Correction. "The usual mantra is, 'Our lives are in jeopardy if we don't have the ability to lock people up whenever we feel it's necessary,'" he said. "Well, it's necessary far less frequently than it's utilized."

Gillis said that solitary confine-

ment might be justifiably used when inmates were very out of control, when multiple inmates were fighting, or when there was an escalation of physical violence. "Individual perpetrators in that situation have to be put into secure status, but certainly not indefinitely, and certainly not for 24 hours," he said. Gillis explained that in his experience, in order to avoid overusing solitary confinement, the correctional officers have to be confident that they could control a situation without resorting to "extreme measures."

"Did it serve a purpose? Yes, it did serve a purpose," Gillis said. "Was it a good purpose? Not really. Were there other ways to deal with it? Always."

Like Gillis, Pyrooz feels that solitary confinement is used too often, though he also believes that the practice plays an integral role in prison security under certain circumstances. Pyrooz believes in a rehabilitative model of prisons — one that releases inmates back into society as healthy, self-sufficient individuals — and acknowledges that solitary confinement has severe negative psychological effects. He argued, though, that the isolation of an inmate can be essential to prison safety when there is "a rabble-rouser or somebody who's up to trouble, who can completely derail rehabilitative efforts in the rest of the units." Pyrooz noted that solitary confinement is particularly useful for managing the behavior of prison gang members, of which there are over 200,000 in United States prisons.

But any benefits of solitary confinement come at a high cost. Inmates like Braham, Bernardi, and Tucker, who Connecticut keeps in solitary confinement for extended periods, pay this price — sometimes with their lives.

TRACIE BERNARDI does not remember exactly when she tried to hang herself at York Correctional Institution. It was sometime in the winter of her fifth year in solitary confinement. What she does remember is the sound of another inmate screaming after peering into her cell, and a guard rushing in and pushing his knee up between her legs to hold her weight so that he could loosen the restraint around her neck.

"When I hung myself it had started to go black and I was changing my mind but I really couldn't do anything about it on my own because I already kicked the chair."

Bernardi spent the next six months in solitary confinement in York's mental health unit before being transferred back to the regular unit to complete her time in solitary. But her time in the mental health unit was not helpful or rehabilitative. "Even when I was in mental health solitary, I never thought I would make it out of prison alive. Never. And I thought I was gonna die at my own hands," she said.

Bernardi recalled that one day, "It got so bad that I just started crying and crying and I sat under my counter in my room…and I just screamed at the top of my lungs for like an hour because I just had no control over anything. And there was nothing I could do." Leading up to her suicide attempt, Bernardi frequently self-harmed by cutting her arms. She contemplated standing on the counter in her cell "and just free falling backwards and smashing my head open."

There is an expansive body of evidence that indicates that solitary confinement causes severe, long-term psychological damage. A study from the University of North Carolina at Chapel Hill found that in the first year of release, the risk of death for inmates who experienced solitary confinement during their incarceration is 24% higher than that of the general population. Inmates' chances of dying by suicide are 78% higher.

Another study from the University of California, Irvine, showed disproportionately high rates of serious mental illness — including depression, anxiety, and self-harming behavior — among inmates in solitary confinement compared to the general prison population.

Reiter, the University of California, Irvine law professor, was the principal investigator on the study. She explained that "it's incredibly common for people who've experienced solitary to talk about a constellation of symptoms that some people describe as SHU symptoms." SHU, which stands for Security Housing Unit, is one of the many names used to refer to solitary confinement. According to Reiter, SHU symptoms include anxiety attacks, sleep disruption, and hallucination.

Those in solitary confinement "might go months or years at a time without having normal face-to-face interactions with people so the only other people they see are officers who are cuffing their hands behind their backs. You're not really looking eye to eye with anyone ever," Reiter explained.

As her son's time in solitary wore on, Fair noticed many of the

"REFORM THING HE SAID FAIR SUPPOSE ACTUALLY WHEN TH AT THE RO

symptoms that Reiter describes appearing in him. "I could see from the letters he was writing that he was starting to lose a grip on reality.... He would start saying things that just didn't make sense," she said. After one particular visit to Northern, Fair became increasingly concerned that her son was no longer himself. "He's in front of me, but he's not in front of me," she remembered thinking.

While time spent in solitary confinement can cause or exacerbate mental illness in inmates, those with pre-existing mental illness are more likely to end up in solitary confinement in the first place. The Yale Law School study revealed that in 33 states, individuals with serious mental illness make up 6.1% of the general male prison population, but these individuals make up 7.9% of males in restrictive housing.

Gillis said that throughout his 36-years with the Department of Correction he saw many inmates come into prison, and solitary confinement specifically, with pre-existing mental health issues, ranging from depression and anxiety to conditions bordering on schizophrenia. Solitary confinement exacerbated those inmates' pre-existing mental illnesses. "Even a person who is of relatively sound mind, when locked up with virtually complete sensory deprivation, with banging from people in adjacent cells, contact with staff which is very often verbally abusive, and sometimes physically abusive... whatever was there before definitely gets worse," he explained.

The psychological damage wrought by time spent in solitary confinement does not disappear when prisoners are released. Bernardi's transition back to the general prison population from solitary confinement was difficult, and though she was released from prison in 2015, she still faces serious issues with anxiety. "I like to be away from people and when I go to do stuff, I'm very nervous and very uncomfortable," she said.

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Bernardi directly attributes her anxiety to her seven years in solitary.

ACTIVISTS, PSYCHOLOGISTS, and former inmates alike concur that solitary confinement is an inhumane practice. But agreeing on the depravity of solitary confinement is much easier than coming to a consensus on a solution to mitigate its harms.

The most popular reforms include the establishment of oversight committees to enforce the Mandela Rules and rehabilitation programs to help inmates re-enter the general prison population and eventually society outside prisons.

In Oregon, the Department of Corrections implemented the "Step Up Program" to improve the living conditions of those in solitary confinement at the beginning of 2020. The program gave individuals in solitary confinement more time out of their cells, more opportunities for social interaction, and increased opportunities for rehabilitative treatment programs, including health educational programming and recreational activities such as art classes. A study done on the program found encouraging results, and some prisoners saw their new living conditions as fairer and less harmful. However, because of the onset of the COVID-19 pandemic, the Step Up Program was never fully implemented as intended, leaving researchers with unanswered questions about the program and its effects both on prisoners and on institutional safety and security.

Pyrooz, who worked on the study, explained that these questions have crucial implications for policy making. If prisoners who participated in Oregon's Step Up behaved similarly to prisoners who did not participate, prison officials could accordingly keep inmates in less restrictive conditions than traditional administrative segregation.

Fair herself was a former advocate for gradual reforms that improved the living conditions of individuals in solitary confinement. Increasingly, though, she has become disillusioned by moderate change after witnessing the repeated failure of reform projects.

In 2017, a reform bill that Fair pushed was watered down until its only significant provision was prohibiting locking inmates under 18 years old in solitary confinement. In 2021, what was supposed to be a set of sweeping changes under the PROTECT Act amounted to nothing more than a few vague shifts in policy by executive order that left plenty of room for DOC officials to continue the use of solitary confinement. Now, Fair's focus is on abolishing the practice of solitary confinement altogether.

"Reform just changes a little thing here, a little thing there," said Fair, "and then we're supposed to believe that that's actually going to bring change when the change that we need is at the root of the system."

To Fair, the change needed in solitary confinement is inextricable from the foundations of the prison system itself. "If we look at the roots of the systems of prisons, they are deeply tied to slavery," she said, calling incarceration "slavery by another name." She cited the racialized enforcement of the late twentieth century's War on Drugs as fuel for the disproportionate mass incarceration of people of color.

UC Irvine's Reiter acknowledged that abolishing solitary confinement feels like an unreachable dream. "I don't think we can cut solitary confinement out of the prison system like you can kind of cancer out of the body and think that it won't come back.... If we really want to think about getting rid of it, I think we have to think much more broadly about reconceptualizing the criminal justice system we have," she explained.

ON JUNE, 23, 2021, 25 years to the day after he first entered the Connecticut prison system, Braham was released. Since then, Braham has worked as a paralegal for a local civil rights attorney in New Haven. He enrolled in the Access to Law School Program at Yale to help prepare him for law school applications and is currently studying for the LSAT. As Braham transitions back to life outside the prison walls, he is advocating for those who are still inside. He is working with the Full Citizens Coalition on winning voting rights for incarcerated individuals in Connecticut.

Since the end of her sentence in 2015, Bernardi has also dedicated herself to activism. She co-founded Once Incarcerated, a nonprofit organization for incarcerated individuals and their families; works as an ACLU Smart Justice leader; and has testified at the Connecticut State Capitol about her experiences in solitary confinement.

After years of abuse, isolation, and invisibility, Braham and Bernardi's stories have become ones of hope and empowerment. But stories like theirs cannot make up for the thousands of other stories — so often untold — of those released from prison after extended stays in solitary confinement who do not find avenues for recovery.

"I have a huge support system," Braham said. "I've seen the same obstacles that other people see.... And I'm saying to myself, if I've got a strong support system, and I'm being hobbled by something like this, how much worse off is the person who doesn't have that support system? Are they doomed to fail?"

HISTORY'S FALLOUT



The Enola Gay Exhibit and Curating America's Past

BY **COLIN QUINN**

On August 6, 1945, the Enola Gay, a B-29 U.S. Air Force military plane, dropped an atomic bomb code-named "Little Boy" on the Japanese city of Hiroshima. As the skies raged, silhouettes of men, women, and children were plastered onto building bricks. The casualties were immense: around 70,000 Japanese citizens perished. Three days later, Bockscar, another U.S. Air Force B-29 airplane, dropped the second atomic bomb on the city of Nagasaki, killing 40,000 Japanese citizens.

What seemed to be the end of the bloodiest war in human history was only a prelude to the beginning of the Cold War, the dawn of the nuclear age, and the growing polarization of American politics.

In 1995, on the 50th anniversary of the end of World War II, the Smithsonian was set to air an exhibit displaying the Enola Gay B-29 airplane. Curators Tom Crouch and Michael Neufeld as well as National Air and Space Museum Director Martin Harwit wanted to create an exhibit that analyzed the bomb-

"It was time to reckon with the bombing of Japan and the two nuclear attacks, but as a country, I don't think we were ready."

er's relevance in the war. Part of this analysis would debate the bomb's necessity and its impact on the civilians of Hiroshima by including photographs and statements from Hiroshima residents and statements from the pilots involved in the bombings.

The Smithsonian was not prepared for the ideological fight that would soon ensue.

In January 1994, Director Harwit sent the final script to the Air Force Association (AFA) for review. It became clear that the AFA did not agree with the direction in which Harwit was taking the exhibit. John T. Correll, editor-in-chief of *Air Force Magazine*, publicly responded to the script, contending that "many visitors may be taken aback by what they see," particularly "World War II veterans who had petitioned the museum to display the historic bomber in a more objective setting." From Correll's perspective, curators of the original script had created what was deemed to be a politically correct revisionist history of an exhibit that should instead express America's triumphant victory in Japan.

Many veterans were outraged and felt they were facing a public trial for fighting against a dangerous foreign enemy on behalf of their country. Correll wrote in *Air Force Magazine*, "The Committee for the Restoration and Display of the Enola Gay, 'a loose affiliation of World War II B-29 veterans,' has collected 8,000 signatures on a petition asking the Smithsonian to either display the aircraft properly or turn it over to a museum that will do so."

As soon as the AFA realized that the Smithsonian would only question the Air Force's actions in the war, it threatened to bring in Congress to investigate if the Smithsonian did not revise their script. Crouch and Neufield's Smithsonian team revised the exhibit plans three times, but the AFA began to petition for the entire cancellation of the exhibit. Amidst national pushback from WWII veterans and the AFA, the Enola Gay exhibit was canceled and instead replaced with an insufficient shell of what was to be: simply a display of the plane itself.

"The Air Force Association was really nervous about how the exhibit would be received by the American public," said Tami Biddle, Professor Emerita, U.S. Army War College, in an interview with *The Politic*. "They didn't want the Smithsonian to go down this road. [The U.S. Military] is a very conservative body and not very reflective of the nation's ideologies. It's a family business, they like to protect their story." Suddenly, the Smithsonian had entered itself into direct conflict with conservative America.

Many at the time, including the Air Force Association, believed that President Harry S. Truman's decision to drop the bomb was necessary and that criticism of its impact was unpatriotic and therefore un-American. However,

other advocates of the full exhibit, primarily critics of the atomic bomb's deployment, believed that by canceling the exhibit, the Smithsonian had failed to educate the American public on the horrors committed in the war and their continued relevance today.

The exhibit was so polarizing that General Paul Tibbets, the pilot who flew the Enola Gay, dropping the bomb on Hiroshima, wrote in his will that he wanted neither a funeral nor a headstone to mark his departure. Tibbets believed that in marking his resting place, he would provide physical grounds for further protests over his actions.

After the original exhibit's cancellation, the Enola Gay bomber was opened as an unadorned exhibit in the Smithsonian National Air and Space Museum and sat there until 2003. Today, the Enola Gay resides in Chantilly, Virginia at the Steven F. Udvar-Hazy Center. Though the WWII Aviation exhibit is open to the public, the Enola Gay's modest new home has allowed it to sink out of the public eye, quietly retiring after such an infamous career. After 55 years of life on the run, the Enola Gay has finally settled down. But this relic of WWII is far too important to forget, and the lessons we may learn from its history far too valuable. Conversations over its role in the war, especially its necessity, must continue.

Just like contemporary debate over controversial statues honoring Confederate leaders and slave owners, historical artifacts like the Enola Gay leave us to question whether displaying the Enola Gay is a form of education to build historical consciousness or whether it condones racist and imperialist American acts and ideologies. Instead of demythologizing Truman's decision to drop the bomb, as the Smithsonian once intended, the exhibit, sans contextual analyses, may be mythologizing it.

It can be hard to tell a soldier following orders that the plane they assembled or the weapon they fired may have been a terrible atrocity. The moral compass that guides a man in war will differ from that of an academic inspecting a great tragedy of war decades later. In that sense, it's possible to see how a veteran might have disagreed with the Smithsonian's new narrative in 1995. "This is where the Smithsonian went into the exhibit a little bit naively," Biddle explained. "The Smithsonian had only ever celebrated technology, they had never looked at it as weaponry."

The narrative that our foreign policy promotes the greater good can be difficult to challenge in the public sphere. The exhibit sought to challenge this narrative — which museum directors believed was harmful — by proving the airplane was more than just technology, as Biddle explained.

"The framework in which we understand the necessity of the atomic bombs ultimately comes down to whether we believe Japan was going to surrender, and the unfortunate truth is that we will never know," explained Yale History and American Studies Professor Beverly Gage, in an interview with *The Politic.* However, by evaluating the apportionment of blame for Japanese civilian deaths upon Japan's unwillingness to surrender, greater philosophical and humanitarian ideals of a person's right to live are ignored.

Whether Japan's imperialist motives propelled the war or not does not dismiss the fact that Americans could not separate the Japanese government from Japanese civilians in the same way they could with Germans — suggesting a clear racial divide between America's treatment of its white and non-white wartime enemies. For instance, the February 13, 1945, bombing of Dresden, which resulted in a great number of German civilian casualties, was met with heavy backlash and censure. Even British Prime Minister Winston Churchill had doubts after the attack, as he wrote in a memo in its aftermath. The bombing of Dresden was quickly followed by numerous criminal trials and declared by many WWII scholars a de facto war crime committed by the Allied Forces. In contrast, there is little publicized remorse for the Japanese after the war. "We wanted to blame Hitler for everything and assume the German people were free of guilt," Biddle said, "but we believed that the Japanese were different."

This racist treatment of Japanese people is why many proponents of the exhibit believed that it was a necessary historical lesson to prevent the vicious perpetuation of ignorance. Perhaps they did not expect to encounter such challenges in changing the opinions of people already set in what they believe — especially when those opinions are forged through decades of U.S. global militarization.

The Pacific theater of WWII was just as much a race war as it was an imperial war, fought between two nations who viewed the other as less than human. This result of this dehumanization led to a war more brutal and bloody than anything anyone had ever seen.

"It was time to reckon with the bombing of Japan and the two nuclear attacks, but as a country, I don't think we were ready," Biddle said.

She is hopeful that future generations will be able to confront and sensitively address such a complex subject.

Mary Lui, a Professor of American Studies at Yale University echoes these sentiments. "I just don't think we are ready yet," said Lui in an interview with *The Politic.* "As a country, we are more polarized than ever." While the Enola Gay exhibit will continue to be debated, its necessity lies in its ability to provide frameworks for bipartisan conversation confronting our history as a militarized state.

When the curators of the late Enola Gay exhibit sought to create what they thought would be an eye-opening and revolutionary exhibit, they ultimately conceded to the weight of opposition. What they realized is that there will never be a perfect time to revitalize the debates over the U.S.'s draconian treatment of the Japanese people in the Pacific theater. But for as long as the Enola Gay is still in public view, today is better than never.

Just in the Q

The Supreme Court's Shadow Docket

BY **CALEB LEE**

EACH JUNE, as spring turns to summer and the Washington, D.C., sun shines most brightly, the justices of the Supreme Court emerge. Their annual term nears its end, and over the course of several weeks, they announce the decisions of that year's cases.

That is usually the procedure, at least. But during the year, situations arise when the Supreme Court determines that a more immediate decision is necessary, and they employ an emer-

gency safeguard for situations where a non-immediate ruling from the Court would result in "irreparable harm" for one or more parties. In recent years, however, the usage of this safeguard has grown in both frequency and scope.

Just in the past few months, the Supreme Court has quietly passed a series of decisions related to immigration, religious liberty, and abortion restrictions in a matter of days. This process, colloquially referred to as the "shadow docket," allows the Supreme Court to make accelerated unsigned decisions without oral arguments or rigorous deliberation. Both the speed and the sheer power of these decisions have raised questions concerning the fairness of this process and the authority of the Court's nine justices. More notably, these accelerated decisions have endangered the welfare of women, immigrants, and countless other vulnerable Americans.

In normal proceedings, a case is filed to the Merits Docket by a federal circuit court and is only considered if accepted by at least four justices. Following a series of briefings and oral arguments, the Supreme Court issues a signed ruling that includes an extensive explanation for the rationale behind their decision. The Supreme Court is intended to serve as an apolitical arbiter of justice, and the compre-

hensive procedures of the Court ensure that every ruling is constitutionally supported and accountable to each justice.

For the shadow docket, once the relevant circuit justice approves cases, they are considered within a shortened time frame — a decision arrives in a week or less. There are three main criteria that a case must fulfill to be reviewed:

1. There is a "reasonable probability" that the four justices will agree to examine the case
2. There is a "fair prospect" that a Court majority will decide that the ruled decision was erroneous
3. Without an immediate ruling, there will be irreparable harm.

Shadow docket decisions do not require a justice's signature and are much shorter in length than normal proceedings. For this reason, they are more susceptible to error or oversight, and therefore are not intended to make complex rulings that deviate from legal precedent. This has not been the case for most recent rulings.

ON SEPTEMBER 1, 2021, Texas' controversial ban on abortions after six weeks of pregancy went into effect after receiving temporary protection from a recent Supreme Court shadow docket ruling. The majority opinion was one paragraph in length and unsigned, a mere three days after it was introduced to the docket. Without any exchange of oral arguments, the Court has undermined the ruling of *Roe v. Wade*, and the livelihoods of thousands of women and abortion providers in a matter of days.

For the past 10 years, a source, who has requested to remain anonymous, worked as a provider within a Texas abortion clinic offering services to women of all ages in order to realize their shared mission of defending women's rights and livelihoods. Texas' historically conservative stance on abortion has not only substantially reduced the number of accessible clinics in the state over time, but also their available services. Her clinic is one of two centers in the entire state that are permitted to perform surgery, and it is the only one that provides full anesthesia for its patients. Their high-demand services attract women from various neighboring states, including Oklahoma, Louisiana, and Arkansas, which share similar, if not more severe, legislative restrictions on abortion.

The source told *The Politic* that, while the clinic's patient load has surged by over 20%, its staff has substantially shrunk in size due to the intensifying personal and political threats that its employees have faced in recent months. She fears that, unless the recently passed bill is reversed, almost all abortion clinics in Texas will become obsolete. While the bill itself prevents the clinic from performing most forms of abortion, it has also intensified existing social and political pressures against women and female reproductive health centers.

In Texas, abortion clinics regularly experience political opposition and hostility from local anti-abortion activists; in the past few months, she reported, the demonstrators have been "more determined and a little more aggressive than before," even physically deterring patients from entering the clinic. The anti-abortion protesters have started bringing posters plastered with grotesque graphics of mutilated babies, which they use when accosting patients attempting to approach the center.

In a short time, women have to weigh moral, social, and medical factors when they decide whether or not to proceed with a pregnancy. Even if they decide to have an abortion, there are often major financial barriers to accessibility since Texan insurance companies are barred from covering abortions with the exception of rape and incest. With the new ban on abortion, most, if not all, legal abortions will likely cease to occur in the state of Texas.

AND THE SHADOW DOCKET'S impact extends far beyond the issue of abortion. Due to the magnitude and extremity of recent rulings, some groups have challenged them in court. In December 2019, the Trump Administration created the Migrant Protection Protocols, which is commonly referred to as the MPP or the "Remain in Mexico" policy. This program prevents immigrants from the Southern border seeking asylum in the U.S. from remaining in the U.S. while the courts process their file. While Biden quickly terminated the initiative after taking office, in August 2021, the Supreme Court defended a federal court's order to reinstate the procedures of the MPP via shadow docket. In turn, the American Civil Liberties Union, a nonpartisan civil rights legal group that had previously fought against this program, challenged the Court's ruling immediately.

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Cody Wofsy, a human rights attorney working to reverse the MPP, told *The Politic* that the Court's decision was fairly extreme even by recent standards. Since January 2019, the MPP has sent approximately 70,000 migrants back to Mexico, where they can remain in a state of limbo for several months before their hearing. While he works regularly with cases that contain emergency motions with the Court, Wofsy has found this case to be unique in its severity and impact. Perhaps the most obvious unusual feature of the MPP case is that it requires negotiations with Mexico in its legal proceedings. The order necessitates that Biden and the courts work with Mexico in both policy and negotiation, an area of legis-

lation where the courts usually defer to the executive branch. It is highly atypical for the Supreme Court to involve itself with the formulation of foreign policy, and in that regard, this case is unprecedented.

Yet, it isn't just the political nature of this case that is unconventional: The MPP is a particularly devastating program on the humanitarian level. Migrants denied refuge within U.S. borders are needlessly subjected to considerable risk of harm, including abductions, rapes, and beatings. Wofsy asserts that the Supreme Court's decision to protect the program is "extremely harmful," and the accelerated rate at which the case has progressed thus far has made his work more volatile and unpredictable than in the past.

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As a human rights lawyer who frequently engages with proceedings within higher courts, Wofsy is concerned by the magnitude and scope of these rushed decisions. The Supreme Court's speed and willingness to yield to political whims is dangerous and potentially unconstitutional.

Wofsy has observed that during the Trump Administration, the Department of Justice has both raised and sustained an extraordinarily high number of emergency relief cases that have prevailed at the Supreme Court.

HOW LEGITIMATE are these legal challenges, and is the shadow docket a fair and just mechanism of the Court? According to Yale Law School professor Linda Greenhouse, one of the country's preeminent Supreme Court scholars, the shadow docket was never a particularly controversial topic until the last four and a half years, when the Trump administration began to make deeply consequential legal rulings through a system intended for emergency use only. The process lacks accountability and transparency, Greenfield said, and, in recent months, has inappropriately formed substantive law through cases that don't receive the standard thorough analysis and deliberation. In this way, these recent cases undermine the basic tenets upon which the Court was founded: rationality and objectivity.

The shadow docket is intended to only make decisions within the boundaries of *stare decisis*, the rule of precedent. An emergency ruling that neither endures the same scrutiny or responsibility as a regular case should not produce substantive permanent law over unprecedented issues. In the past, the Court mostly used the shadow docket to issue routine orders such as the extensions for oral arguments or extended the time allotted for parties to file a brief. When considering more consequential cases, the Supreme Court has, for the most part, strictly adhered to current constitutional interpretations and legal precedent. In 2016 and 2020, the Supreme Court deterred two laws on abortion that would largely prohibit the performance of most abortions in Texas and Louisiana; therefore, at least in the eyes of many legal scholars, the Court should have followed suit in the most recent case in Texas.

According to Greenhouse, the problem with the current abortion bill is that it attempts to reshape the law surrounding abortion due to the personal prejudices of certain politicians and justices against *Roe v. Wade*. For now, the Court's opinion on abortion has not changed, and therefore the judicial branch should not enforce or defend anti-abortion policy. Supreme Court justices ought not to formulate and modify existing law through the shadow docket merely because they have the power to do so. But their recent string of successes may set the Court down a slippery slope.

In the last term, the Court has made real law on Covid restrictions and gatherings in which they prioritized religious liberty over national health — a decision that, Greenhouse suggests, would have been more scientifically reasoned if pursued under the normal docket. A significant feature of the regular proceedings of the Supreme Court that is excluded from the shadow docket process is *amicus curiae*, a procedure that provides the court with an impartial expert to inform the justices' rulings of the case. Perhaps a more direct, scientifically-bolstered warning of the risk that religious gatherings posed on public health would have led to a different outcome.

Public opinion and politics have always influenced the court, just as court decisions have influenced public opinion. Whether this is an intended consequence, or a major flaw within our separation of powers, it is an undeniable feature of our government. Despite such persuasions, the Supreme Court must maintain consistency in its rulings with respect to the Constitution and the precedents set by previous cases.

In *The Federalist Papers*, Alexander Hamilton famously writes that the Supreme Court is compelled by "neither FORCE nor WILL, but merely judgment," making it the least dangerous branch of the federal government. Amidst the hurricane of politics and conflict within Congress and the executive branch, the Supreme Court was intended to ground the country in fairness and reason through purely intellectual assessments of the defined set of ethics outlined by the Constitution. Yet, through the abuse of the shadow docket process, the Supreme Court has become the primary vessel by which political whims and personal passions are cemented into temporarily unassailable law. The shadow docket has weaponized the force of the Supreme Court to rapidly accelerate political desires and allow personal ideologies to precede our constitutional framework.

BY **ATL CASTRO ASMUSSEN**

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KEYRA ESPINOZA says that there are no words to describe her experience visiting Ingapirca, the ancient ruins of her Indigenous Cañari ancestors, in the summer of 2020. Located in the Southern Andes mountains of Ecuador, Ingapirca is a landscape Espinoza cherishes both for its wildlife and its deep spiritual meaning for her ancestral community.

"[Ingapirca] has a lot of historic meaning for me…that is the closest I've ever been to the homeland of my grandfather," she said. Espinoza was raised on the stories of her Cañari people and the centuries they spent nurturing a relationship with their environment.

Espinoza is an Afro-Indigenous climate activist and environmental policy major at the University of Miami. Born in New York City to an Afro-Indigenous Ecuadorian family, the history and values of this community guide her climate and Indigenous activism. Espinoza has seen the changes to her ancestral community wrought by climate change and focuses on the intersection of climate and Indigenous justice. She believes that climate activism should highlight the effects of climate change on Indigenous communities and increase awareness of her ancestral community's vulnerabilities.

Delicately perched high atop the hills of the province of Cañar, the ruins are ringed by lush forest greenery. Walking toward an ancient religious center located near the ruins, used for various community festivities to this day, she felt welcomed and at home. With each step, she felt "the imprints of [her] footsteps align with the imprints of [her] ancestors." As Espinoza made the journey back from her ancestral home to her University of Miami classrooms, however, she could only think about what the community might look like when she returned. Climate change fundamentally threatens the Cañari nation and her people by disrupting patterns of food production and contributing to the erasure of Indigenous culture.

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ENVIRONMENTAL RESEARCHERS from across the world have concluded that climate change will disproportionately affect Indigenous communities. How governments should respond to climate change — and sometimes the very fact of its existence — is a contested topic in contemporary politics. The United States has recognized both the urgency of this global issue and its direct impact on historically marginalized groups, directing national resources toward the study of climate change's impact on Indigenous communities.

One study conducted by the U.S. Department of Agriculture asserts that climate change "threatens the continuance of many Indigenous cultural systems that are based on reciprocal relationships with local plants, animals, and ecosystems." These findings support the idea that Indigenous people should be centered in future climate change policy. While everyone may be affected by changes in the climate, including increased severe weather or rising sea levels, Indigenous communities face the additional risk of losing their culture.

Climate change threatens Cañari culture, livelihood, food sustenance, historical connection, and mental and physical health. It presents a fundamental threat to the culture of Native communities by increasing the frequency of natural disasters and the presence of diseases that existing healthcare structures are already inadequately equipped to combat. It also disrupts weather patterns, impacting traditional food production and consumption. Indigenous peoples' history of connection to Indigenous lands renders the global issue more personal. Climate change increases the likelihood of Indigenous people succumbing to physical ailments, disease, and mental health difficulties.

The potential disappearance of Cañari culture is a major concern exacerbated by climate change, as the nation has already faced lengthy legal battles to prevent the mining of natu-

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The threats climate change brings to Indigenous communities could be curtailed by the same deep connection to their land that shapes their religions and cultures.

ral resources and the contamination of local water reservoirs. "Most of our ancestral culture depends on the land, and without it, we will lose our identity and traditions," Espinoza said. Religious conceptions of nature remain vital to the beliefs and practices of modern-day Indigenous communities around the world and forge intimate connections between Indigenous people and nature.

Daniel Wildcat, a member of the Muscogee Nation of Oklahoma and director of the Haskell Environmental Research Studies Center (HERS), knows these connections well. In his book *Climate Change and Indigenous Peoples of the United States*, Haskell notes that "Indigenous peoples are concerned deeply with relationships between humans and the natural world…Species interactions [and] social-ecological system interactions are often at the core of Indigenous identity and underpin their beliefs and practices." Indigenous people typically have a strong connection to their natural surroundings and derive many religious aspects of their cultures from these connections. Their deep respect of nature and land also engenders strong beliefs among communities concerning their nature's continued protection.

For Espinoza, the enmeshing of nature and religion within Indigenous culture has manifested through the Ecuadorian tradition of making and drinking of *chicha*. *Chicha* is a popular fermented corn beverage that has existed in the region for millennia and is drunk in religious festivals and social gatherings. Espinoza finds it extremely "significant to [her] nation because it reinforces tradition and is used to allow the community to celebrate in a unified way." But with climate systems changing, the world has seen increases in both the severity and likelihood of natural disasters such as forest fires, droughts, and tropical storms, which threaten cultural practices like *chicha* by disrupting natural cycles critical to food production. Espinoza and others in the Cañari community are worried that they "won't have access to growing the traditional food that has sustained [their] ancestors for many generations and is currently sustaining [them]." When cultural practices are deeply linked to the production of traditional food, as is often the case with Indigenous communities, loss of access to basic sustenance translates to a loss of culture.

Chicha is only one example of the broader cultural erasure Indigenous communities will face. The impact of climate change will only become more severe if world leaders fail to act with the expediency the climate crisis necessitates. Indigenous people already feel these effects tangibly. "What we once used to know about the land is being altered — we can't even read climate patterns anymore," Espinoza said.

For Indigenous communities like Espinoza's that rely on traditional methods of agriculture, climate change is a fundamental threat to Indigenous people's livelihood. Indigenous communities across the world depend on their own sovereign food 'ecosystems' for year-round sustenance, where communities completely control their food production and supply. For example, the majority of Alaskan Natives' diets are composed of traditional foods ranging from *muktuk* (layers of whale fat) to local berries. Communities like these may not be able to adapt their food systems to climate change in the same way that wealthier Western countries, whose agricultural methods are based on modern technology, may be able to adapt.

Wealthier countries are primari-

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ly responsible for the climate crisis in the first place. This is reflected in the fact that the countries with the highest greenhouse gas emissions, which fuels climate change by increasing global temperatures, are among the most developed and wealthy. The climate crisis has been guided by the effects of colonialism; wealthy countries have historically invaded and stolen resources from Indigenous communities to make profits. Vestiges of colonialism, from the endless miles of mining tunnels to still-contaminated water sources, are littered across the planet. The desire to acquire newly found resources, paired with imperialism, resulted in the seizure and pollution of Native lands that were rarely ever returned to their rightful owners. Native peoples, however, have nonetheless been using preexisting knowledge about the environment to ensure adaptation to climate change.

Indigenous people's connection to nature and land can also be viewed through a historic perspective, as Native land has rich historic meaning to Indigenous people. Hannah White, an honors fellow at the University of Oklahoma School of Law, emphasizes this connection in her research project *Indigenous Peoples, the International Trend Towards Legal Personhood, and the United States.* White observes that the United States, for example, "continues to be inhabited by Native peoples with spiritual and cultural connections to the land — land that colonists methodically acquired and used to build their empire." Modern Indigenous peoples have to grapple with these circumstances throughout their day-to-day lives.

Indigenous peoples' historical connection to their land and nature also further exemplifies how climate change has produced and will produce hardship. For instance, the land on which Indigenous people reside has more than proprietary value. The property represents the struggle of their ancestors for security and basic wellbeing. This symbolism makes the tainting of their land by the effects of climate change all the more personal, especially given the historically uneven allocation of land to Native peoples and their frequent dispossession.

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The potential disappearance of Cañari culture is a major concern exacerbated by climate change, as the nation has already faced lengthy legal battles to prevent the mining of natural resources and the contamination of local water reservoirs.

White added that Indigenous peoples in the U.S. face additional adversity because they primarily "live on reservations or exclusively Native-controlled lands [and]...likely not those they historically occupied." Indigenous people truly cannot afford to lose more of the little land they have left. And they shouldn't have to do so, considering that they possess only a fraction of the land they did before the start of colonization and globalization. Their connection to the remaining land they have left should be all the more respected and must be accounted for as the global community attempts to resolve the climate crisis. The people who stand to lose the most have already lost enough.

The impacts of climate change on mental and physical health can manifest in myriad ways. The loss of community and culture has been, and will continue to be, mentally debilitating. And that is on top of the physical harm climate change often inflicts. For instance, researchers have concluded that climate change will dramatically increase the presence of food and water-borne illnesses. As a result, humans will inevitably contract and subsequently succumb to more illnesses as climate change worsens. Though everyone is at increased risk of disease, Indigenous people have to combat their susceptibility to disease with healthcare systems that are typically inadequate in providing sufficient healthcare services. The preservation of Indigenous land must be recognized as a basic goal of climate change policy, especially in light of the differences in preparedness for climate change between Indigenous communities and wealthier countries.

THOUGH DIRE, climate change is not something that Indigenous communities are wholly unprepared for. The threats climate change brings to Indigenous communities could be curtailed by the same deep connection to their land that shapes their religions and cultures. Some researchers propose that the extensive knowledge of

local environments held by Indigenous communities may help them cope with climate change. Indigenous communities should be looked at as models for how to adapt to the climate crisis, and supported in their adaptation efforts by their wealthy counterparts.

For instance, White also points to the fact that, "traditional knowledge embodied in technologies, practices and cultivated species facilitate coping with climate change." She has observed, for example, Indigenous coping mechanisms for dealing with drought, a natural phenomenon that could become more frequent. Indigenous communities in affected areas harnessed both their traditional knowledge about the ecosystem and traditional water storage tactics to survive. This explains how, comprising less than 5% of the world's population, Indigenous people protect 80% of global biodiversity. Though this example hints that we should not think Indigenous communities are completely ill-equipped to grapple with impending climate changes, the global diversity of natural resources and ecosystems across Indigenous communities makes these kinds of coping mechanisms localized. Each Indigenous community would have to adapt using their own strategies based on the kinds of climate change driven catastrophes individual to them, which makes it difficult to identify an overarching coping strategy that could be universally applicable.

Though increased environmental knowledge augurs a promising future for Indigenous communities faced with adapting to climate change, the diminishment of their surrounding environment will inevitably still disrupt their spirituality and religion.

"Climate change is real and it's impacting Indigenous communities at the frontline of the [climate] movement at a more rapid pace than people in city and urban areas," Espinoza said. Espinoza's solution: amplifying Indigenous voices in climate change discussions, especially on the political level. "When governments and world leaders reunite to make up climate change solutions, we need to include Indigenous people in the decision-making process…we need to intersect and have Indigenous communities speak for themselves," she said.

According to Espinoza and many other climate activists, the recent COP26, the 26th United Nations Climate Change conference, excluded Indigenous voices when discussing the future of climate change. Espinoza mentioned that though Indigenous people were present at these talks, they were relegated to speaker stands and not included in major discussions with world leaders. These sentiments are not confined to Indigenous activists, however, and extend into academia as well. "When it comes to the decision makers, they often ignore activists or write off their claims, which I completely disagree with," Justin Farrell, a professor at the Yale School of the Environment, said in an interview with *The Politic*. Professor Farrell led a first-of-its-kind study at Yale where researchers were able to quantify exactly how much land has been seized from Indigenous hands since colonization. In the United States, this figure lies at nearly 98.9%.

Professor Farrell believes that placing greater emphasis on Indigenous communities in science will pave the way towards the inclusion of Indigenous voices in government; his study is a first step in this process. For instance, upon the study's publication, Professor Farrell notes that "tribes already knew" how much land had been taken from them, so the study's findings "aren't surprising" to them. Professor Farrell's intentions when creating the study were to "provide a piece of scholarship that is rigorous as it pertains to policy," which he believes Indigenous people can use to their advantage.

According to Professor Farrell, placing a greater emphasis on Indigenous people in the realm of scientific study can cause lobbyists and policymakers to give more consideration to Indigenous struggles. For instance, if there was a greater focus on studying the customary agricultural methods of Indigenous societies, policymakers should be able to orient their policy to include them. In Professor Farrell's words, placing "ecological knowledge into the frameworks that dole out funds for climate adaptation, funding that would begin to be allocated to what they might see as non-traditional techniques" is a requisite step towards including Indigenous voices in climate change conversations. Simply put, policymakers have to start reenvisioning who their policy is geared towards. This begins with conducting more studies such as Professor Farrell's that disseminate valuable, empirically gathered information that can paint a comprehensive picture of the struggles of Indigenous people.

However multifaceted the issue of combating climate change may be, it should be the focus of future study and policy to aid the communities that face the most harm as a result of this human-induced phenomenon. Though Espinoza's experience with Indigeneity is specific to Ecuador, climate change is not. We must recognize why climate change is more than a physical threat — it is inherently a threat to Native peoples' identities and lives across the world.



THE PRICE OF A PANDEMIC

A Conversation with Economist Stephen Roach

BY: **BRYSON WIESE**

DURING A 30-YEAR TENURE at Morgan Stanley, Stephen Roach served as the firm's Chief Economist and as the Chairman of Morgan Stanley Asia. Now a faculty member at Yale, Roach is an influential commentator on topics such as China, globalization, and trade, frequently appearing on CNBC and writing for outlets including the *Wall Street Journal* and *Financial Times.*

The causes of inflation are being debated, but before we get into those, I want to ask about how we know that inflation is even occurring. What metrics do you find most useful for gauging inflation?

Primarily, we use the Consumer Price Index put out by the Bureau of Labor Statistics. We then use a comparable index put out by the Commerce Department called the consumption price deflator. Sometimes, we take out food and energy to get a clean read on the non-volatile factors of inflation.

There's also an ancillary index put out by the Bureau of Labor Statistics, called the Producer Price Index, that looks mainly at price pressures bearing down on producers at different stages of the production process. We look at commodity prices, metals, energy, oil. There's a lot of anecdotal price evidence. You know, new cars, used cars, home prices, and the like.

So we're not lacking in metrics. And the conclusion of virtually all of the ones is that in the last nine months, there's been an appreciable acceleration in the rate of price increases. It's now caught the attention of the Federal Reserve, which is empowered by Congress with aiming for "price stability," defined by the Fed as an inflation rate that is closer to 2%. We're well above that right now.

Did some economists see this upsurge in inflation coming more than others?

Well, I hate to beat my own drum, but 19 months ago, I wrote an op-ed piece in the *Financial Times*. The title of it was something like, "A Return to 1970s Stagflation is Only a Broken Supply Chain Away." And, you know, the supply chain has broken for all practical purposes. We're seeing bottlenecks and congestion all around the world.

And yet, I don't want to give myself too much credit because while the supply chain is a big issue, I don't think it would have been enough in-and-of-itself to cause the type of sharp surge we're seeing. That is, I think, equally

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traceable to an extraordinary bounce back on the demand side of most major economies. It's this combination of a fragile and now broken supply chain — in the face of an explosive bounce back in post-lockdown aggregate demand — that is really wreaking havoc on the inflation front.

So there's been an increase in supply chain issues and an increase in aggregate demand. Are there any other pieces that are important causal factors, such as monetary and fiscal policy?

Well, what we tend to look at is the relationship between the policy of central banks — or in our country, the Federal Reserve — and inflation. And the Fed has been adamant, up until very recently, in its denial that this inflation problem was serious.

The fiscal authorities have also played a role. I mean, we've had a lot of stimulus — understandable in many respects to deal with COVID. Now, we've had a large infrastructure bill enacted, and there's a lot of debate over this nearly $2 trillion Build Back Better plan. We're pouring a lot of fuel on a smoldering fire. History tells us that that's something that could be consequential for inflation.

The markets don't seem too concerned about it. But I suspect that is a little bit of wishful thinking there.

How do you expect the Federal Reserve and the Biden administration to respond to rising inflation? And equally importantly, how should they respond?

I think the Fed has pretty much telegraphed how it's going to respond. It's going to cut back the growth of its balance sheet. It's been injecting about $120 billion a month into the economy — $1.4 trillion a year — to deal with COVID. Its balance sheet is swollen to a record level. A few months from now, what used to be $120 billion will be cut to, say, $90 to $100 billion, and then it'll be cut successively over the next several months.

We call this tapering the balance sheet because they're slowing the rate of growth in the balance sheet, but the Fed has not given any signal that it wants to reduce the size of the balance sheet. They just want to reduce the incremental growth over a relatively prompt period of time to zero. And then if the inflation problem continues to be viewed as serious, they would take the next step, which would be to raise their benchmark policy rate, the federal funds rate, which is zero. That would not come until much later in 2022.

They've got the order of this operation backward. They need interest rate increases immediately. But I don't think the Fed is going to listen to me. I think they'll be very cautious and very gradual in raising rates.

I'll tell you why this worries me. The Fed is operating as if the inflation environment in the United States has been temporarily disturbed by these COVID-related gyrations. They are still clinging to the view that eventually the inflation rate is going to go back to what it was before COVID. But what if that's not correct? I would not be surprised, over the next few years, to see inflation run materially above what it did pre-COVID.

If we run into another economic crisis, how severely does this inflationary environment tie the Fed's hands?

The Federal Reserve Board right now has got its major instrument, the federal funds rate, at zero. So let's say there was another crisis immediately. They have no ammunition. As we used to say in the trade, the central bank is out of basis points. They're not going to — as is the case in Japan or in Europe — move to a slightly negative policy rate. The Fed has steadfastly resisted that. So the only thing they can do, if there's a crisis when the policy rate is zero, is to once again inject massive amounts of liquidity into the system by a sharp expansion of the balance sheet.

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Zero interest rate policy, fondly known as ZIRP, is designed to address a crisis. The mistake that the Fed and other central banks make is to keep interest rates at zero long after the crisis is over. That's okay if the inflation rate is really low, but it's not okay if the inflation rate is well above the Fed's 2% target.

Is there anything else that you want to add?

I'm old enough to have worked as a professional economist during the 1970s at the Federal Reserve Board. I saw firsthand how a very sophisticated, highly professional organization like the Fed misdiagnosed inflation back then and fell well behind in addressing it.

In the early '70s, when inflation first became a problem, it followed the Arab oil embargo of late 1973. That led to a quadrupling of world oil prices. The Fed chairman at the time, a man that I worked with very closely, Arthur Burns, said, "This is transitory. It has nothing to do with monetary policy. We're not going to react to it."

A few months later, food inflation picked up. Burns called us into his office. He said, "I've studied this, and this is due to the El Nino weather patterns, which had an adverse impact on schools of fish off the coast of Peru." These fish were, like, little anchovies that go into the production of feedstocks for cattle and pigs in America. Lacking that input, the price of beef and pork started to skyrocket. Burn said, "I'm not going to deal with that." And so he asked us on the staff where I was at the time to take food and energy out of the Consumer Price Index.

We protested. We said, "You can't do that. These are things that people need, day to day." He said, "Well, if you don't do it, I'm gonna find somebody who will." He sort of threatened our jobs. So we did it. We didn't realize it but in performing that exercise, we created the first version of what is now known as the core CPI, which is a CPI excluding food and energy. But Burns didn't stop there. By 1995, we had taken out about 60% of the CPI, and the remainder was still going up sharply. And only then did Burns see that there was an inflation problem.

I tell you this long-winded story because you have to be really suspicious of calling a wide range of price disturbances "transitory." That was a big mistake in the 1970s. Fed Chairman Jerome Powell finally conceded that he's going to refrain from using the word "transitory" in the future. Treasury Secretary Janet Yellen testified in front of Congress and said the same thing.

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This is not the '70s. But that doesn't mean we should ignore the experience of the '70s insofar as the types of lessons they teach us in diagnosing and responding to inflationary pressures.

This interview has been condensed and edited for length and clarity. A longer version is published on thepolitic.org.

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